Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Peter A. Meyer, Esq. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Meyer is an attorney licensed to practice in the State of Indiana, and in certain Federal Courts of Indiana, Illinois and Michigan . He is employed by Faegre Drinker Biddle & Reath LLP, and is resident in the firm's Indianapolis office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

Defendant's motion is **granted**. Peter A. Meyer, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order lodged with the Court on October 29, 2025. No appearance is required at the February 11, 2026 hearing.

10. 9:00 AM CASE NUMBER: C25-02393
CASE NAME: TOM SPIES VS. IRA HARRIS
HEARING IN RE: APPLICATION FOR PRELIMINARY INJUCTION
FILED BY:
TENTATIVE RULING:
Plaintiffs Tom and Brenda Spies' motion for a preliminary injunction is **denied.**

Background

Defendant Ira Harris represented Plaintiffs the Spies in a civil action in 2006 (*Spies v. Emley*). In June 2006 Harris withdrew from representation of the Plaintiffs due to payment issues. On July 24, 2002, Plaintiffs and Defendant signed a promissory note for $60,000 which includes $40,000 in existing lawyer fees, $10,000 in passed lawyer retainer fees and $10,000 of passed lawyer fees to be paid on 8-1-06. (Comp. ¶10.) On August 2, 2006, Plaintiff signed a trust deed and assignment of rents to secure the promissory note. (Comp. ¶11.)

Defendant and Plaintiffs ultimately won their case against the Emleys, however, a dispute over payment to Harris arose. The parties went to binding arbitration and ultimately the arbitrator decided that Defendant was owed $78, 025.91. (Comp ¶16.) The amount was entered as a judgment in court (with interest and costs) on February 6, 2008 as $83,541.15. (Harris RJN ex. I and Contra Costa Case No. N07-1969). Defendant recorded an abstract judgment on the Danville property (which is Plaintiffs' home).

A second dispute arose between Defendant and Plaintiff regarding The Moore & Baker invoice. Moore & Baker provided expert services in the *Emley* Case and they claimed $5,250.50 in unpaid fees. Plaintiffs did not pay Moore & Baker and ultimately Defendant paid them and requested reimbursement from Plaintiffs. In ruling on a motion by Plaintiffs, a judge held that the Moore Baker invoice was not part of the fee arbitration. (Harris RJN. Ex. M.) The judge also stated that interpretation of the deed of trust is beyond this court's jurisdiction. The minute order regarding this issue, explained that "The arbitration award… does not require… Harris to reconvey the deed of trust… and it is beyond this Court's jurisdiction in this matter to interpret the scope of the deed on its own terms." (Defendant RJN ex. M.)

Plaintiffs claim that on February 21, 2008, they tended a cashier's check in the amount of $83,941.47, which would have been full payment on the judgment, including interest, to Defendant. Defendant points out that Plaintiffs' email conditions the check on Defendant agreeing to release the deed of trust. Plaintiffs claim that Defendant wrongfully rejected this payment because he wanted to be reimbursed for the Moore & Baker invoice and that amount was not included in the check. Plaintiffs argue that Defendant's rejection of full payment stopped the accrual of interest on the judgment pursuant to Civil Code section 1504. Defendant disagrees.

In 2015 and 2016, Defendant used a wage garnishment process to obtain $33,487.35 towards the judgment. In 2017, Defendant demanded $99,353.02, which he claims was owed on the promissory note and deed of trust. On June 9, 2017, Defendant obtained a renewal judgment in the amount of $135,209.84. In January 2025, Plaintiffs tended a cashiers' check to Defendant in the amount of $50,454.12, which Plaintiffs argue would pay off the original amount of the judgment. In May 2025, Defendant began levying rents from Plaintiffs' rental property in Covina and later filed paperwork in Los Angeles to have the rental property sold.

Plaintiffs have brought this lawsuit against Defendant for (1) quiet title, (2) breach of fiduciary duty, (3) cancellation of instructions and (4) declaratory relief. For the quiet title claim, Plaintiffs seek to have the deed of trust and the abstract judgment removed. For the breach of fiduciary duty claim, Plaintiff alleges that Defendant breached his fiduciary duties at the creation of the promissory note and deed of trust and when he renewed the judgment. For the cancellation of instruments claim, Plaintiffs seeks to cancel the deed of trust and the abstract judgment. Finally, the declaratory relief claim on several issues including the effect of the cashier's check offered to Defendant in February 2008, the need to seek collections from the Moore & Baker invoice in a separate action, and Defendant' duties currently regarding the deed of trust and abstract judgment.

Analysis

In this motion Plaintiffs request a preliminary injunction that prevents Defendant from collecting on the renewed judgment until Plaintiffs' claims can be heard. Plaintiffs argue that this order is needed because Defendant has a hearing to sell Plaintiffs' rental property scheduled in Los Angeles Superior Court (originally scheduled for October 9, 2025, and now set for April 9, 2026). Plaintiffs also want an order preventing Defendant from foreclosing on the deed of trust for the Danville property.

When deciding whether to issue a preliminary injunction, "the trial court must consider 'two interrelated factors,' specifically, the likelihood that plaintiffs will prevail on the merits at trial, and the comparative harm to be suffered by plaintiffs if the injunction does not issue against the harm to be suffered by defendants… if it does. [Citation.]" (*King v. Meese* (1987) 43 Cal.3d 1217, 1226.)

Further, "An injunction cannot issue in a vacuum based on the proponents' fears about something that may happen in the future. It must be supported by actual evidence that there is a realistic prospect that the party enjoined intends to engage in the prohibited activity." (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) As to the Danville property, there is no evidence that foreclosure is likely to occur. In the supplemental briefs, Plaintiffs admits that there is no imminent threat of foreclosure and Defendant concurs. Unless new evidence of foreclosure proceedings occur, there is no need for a preliminary injunction to prevent foreclosure of the deed of trust. For this reason alone, the request for a preliminary injunction as to the deed of trust is denied. The Court has, however, consider the merits of the request as well.

Probability of Prevailing

Plaintiffs' complaint alleges claims for (1) quiet title, (2) breach of fiduciary duty, (3) cancelation of instruments and (4) declaratory relief. On February 6, 2026, Plaintiffs submitted for filing a first amended complaint that includes a fraud cause of action. The Court has not considered the first amended complaint, which was submitted for filing after all briefing was filed, in its analysis because it would be unfair to Defendant for the Court to consider new issues that were not raised with the moving papers.

One of the main issues in dispute is whether the Moore & Baker invoice was included in the promissory note and deed of trust. The Secured Promissory Note for $60,000 states that it is for Ira Defendant' representation in the *Spies vs. Emley* action as follows: "$40,000.00 of existing lawyer retainer fees, $10,000.00 of passed lawyer retainer fees, and $10,000.00 of passed-lawyer fees due to be paid on 8-1-06." The Long Form Deed of trust, applies to the Danville property, and states that it is to secure the debt evidenced by the promissory note, referencing the same $60,000 in lawyer fees. And for "any additional sums and interest hereafter loaned by Beneficiary to the then record owner of the real property, as evidenced by a promissory note or notes…" (Spies dec. ¶¶9-12; Harris dec. ex. B.)

Moore & Baker are listed as certified public accountants and they agreed to do work on the *Emley* case for the Plaintiffs. (Harris dec. ex. C.) Moore & Baker requested payment of $5,250.50 for their work on the *Emley* case, however, Plaintiffs did not pay Moore & Baker. (Harris dec. ex. D.) Defendant argues the Moore & Baker invoice was included in the promissory note as they were an expert retained for trial. Plaintiffs argue that Moore & Baker's fees were not included in the promissory note and deed of trust.

On this issue, the Court finds that Plaintiffs have shown a probability of prevailing. The promissory note and deed of trust both refer to "lawyer fees". There is no mention of costs or expert fees included in the promissory note or deed of trust. Further, the deed of trust contemplates other loans to the Plaintiffs, but those would be evidenced by a promissory note or other note and Defendant has not provided any other notes.

The next question is whether the Plaintiffs made an offer for full payment under Civil Code section 1504 such that it would stop the running of interest. Civil Code section 1504 states that "An offer of payment or other performance, duly made, though the title to the thing offered be not transferred to the creditor, stops the running of interest on the obligation, and has the same effect upon all its incidents as a performance thereof."

" 'A tender is an offer of performance made with the intent to extinguish the obligation. (Civ. Code, § 1485.)' [Citation.] A tender must be one of full performance (Civ. Code, § 1486) and must be unconditional to be valid. (Civ. Code, § 1494 … .)" (*In re Marriage of Green* (2006) 143 Cal.App.4th 1312, 1323.)

"An offer of performance must be free from any conditions which the creditor is not bound, on his part, to perform." (Civ. Code, § 1494; see e.g. *Still v. Plaza Marina Commercial Corp.* (1971) 21 Cal.App.3d 378, 385 [an offer to pay on the complaint while reserving the right to later request an offset of that amount should the cross-complaint prevail at trial was not an unconditional tender]; *Schiffner v. Pappas* (1963) 223 Cal.App.2d 526, 530 [a tender of the amount owed under a contract was not unconditional where it included a demand that the contract be reinstated and there was no argument that the other side was obligated to reinstate the contract.].)

Here, Plaintiffs provide evidence that they prepared a cashier's check and offered to bring it to Defendant in exchange for release of the lien and the deed of trust. Defendant refused to release the deed of trust, stating that the Moore & Baker invoice was secured by the deed of trust and remained unpaid. (Spies dec. ¶¶18-21 and exs. A and B; Harris dec. ex. J.) Defendant emailed Plaintiffs that he would provide a satisfaction of judgment and release of lien if Plaintiffs brought him a cashier's check tomorrow (February 20). Plaintiffs state that they tendered the cashier's check on February 21, but Defendant refused to accept the check. (Speis dec. ¶20 and 21 and ex. B.) Defendant states that he did not receive the check in his office as requested and followed up with an email on February 22. (Harris dec. ¶10 and ex. K.)

Here, Plaintiffs offered to pay the full amount of the judgment but requested a release of the lien (or judgment) and also release of the deed of trust. The Court finds that Plaintiffs have shown a probability of prevailing on their theory that the deed of trust secured the same amounts owed in the judgment and that the Moore & Baker invoice was not covered by the deed of trust. Thus, there is a reasonable argument that Plaintiffs' request for release of the deed of trust as part of their offer to pay the judgment was not an improper conditional request to which Defendant was not bound to perform. Thus, there is at least an argument that Plaintiffs' offer to pay the judgment in exchange for a release of lien and deed of trust was not an improper conditional tender.

Defendant argues that Plaintiffs have not shown that their offer to pay was legitimate because they have not shown that they had the funds available. "An offer of performance is of no effect if the person making it is not able and willing to perform according to the offer." (Civ. Code, § 1495.) Defendant points out that the cashier's check was not dated until February 21, which is two days after the email exchange. This raises a potential issue on whether Plaintiffs actually had the funds available on February 19, but it is insufficient to defeat Plaintiffs' statement that they had the money and made a tender to Defendant.

The Court finds that Plaintiffs have shown some probability of prevailing on their theory that they complied with Civil Code section 1504 and stopped the running of interest on the judgment.

The problem for Plaintiffs, however, is it is not enough to show that they might be right some of their theories, they need to show that they have a probability of prevailing on one of the claims in their complaint. Here, there are two related issues that form the basis of Plaintiffs' claims: (1) is the deed of trust on the Danville property still valid and enforceable? And (2) is the amount of interest in the Harris judgment correct and thus enforceable?

Defendant raises several affirmative defenses that raise doubts about whether Plaintiffs can prevail. Defendant argues that Plaintiffs' claims are barred by the statute of limitations. Plaintiffs decided not to respond to this argument on the merits. Defendant shows that the breach of fiduciary claim is time barred. Breach of fiduciary duty has a 3 or 4 year statute of limitations and here the claim is based on Defendant's actions in 2006 to 2008. (Code of Civil Procedure sections 338(d), 343.). For the purposes of this motion, the Court finds that Plaintiffs' breach of fiduciary duty claim regarding the creation of the deed of trust is time barred. Similarly, the cancellation of instruments statute of limitations is also 3 or 4 years and that claim is likely expired at least as to the renewed judgment claim which occurred in 2017. Thus, as to those claims, Plaintiffs have not shown a probability of prevailing on the merits.

The quiet title claim, however, requires a different analysis. Plaintiffs are not claiming that the deed of trust was improperly recorded, only that it is no longer valid. The Court is not convinced that the quiet title claim as to the Danville property is expired. Plaintiffs argue that the promissory note was at zero when it was given to Defendant because Plaintiffs had paid all amounts due at the time. (Spies dec. ¶¶9-12.) While Plaintiffs may be able to prove that the past due attorney fees were at zero when the promissory note was given to Harris to record, they have not done so here. Further, the promissory note and deed of trust included future fees for work on the *Emley* case. Ultimately, Defendant then obtained a judgment after a fee arbitration award for the unpaid fees in the Emley case. Assuming, that the amount secured by the deed of trust was covered by the judgment, Plaintiffs has not paid the entire judgment yet. Thus, Plaintiffs have not shown that they have paid the debt that was secured by the deed of trust. Therefore, they have not shown a probability of prevailing on this theory for quiet title. To the extent the cancellation of instruments claims is not time barred because it is based on more recent theories regarding payment of the debt, it fails for the same reasons as the quiet title claim.

In requesting supplemental briefs, the Court requested briefing on whether the fee arbitration award and later the judgment addressed the same debt as the deed of trust and if so, would the deed of trust no longer be enforceable. Upon further review, this theory was not included in the claim for quiet title and therefore whether or not the entry of judgment voids or nullifies the deed of trust is not currently before the Court.

Defendant argues that collateral estoppel prevents Plaintiffs from claiming that the offer of payment on the judgment was both a satisfaction of the judgment and the deed of trust. Collateral estoppel can be used to show that the Moore and Baker invoice was not included in the fee disputes and thus, not included in the judgment. Also, in entering the judgment, the Court stated that the interpretation of the deed of trust was beyond the scope of the judgment, but that ruling did not interpret the deed of trust. Presented with a quiet title action, the Court can now decide the deed of trust issue.

As to whether the judgment amount is correct, Plaintiffs point to their declaratory relief claim (as noted above, their fraud claim is not properly before the Court). The Court is not convinced that Plaintiffs can attack the judgment amount in this case through a declaratory relief claim.

Code of Civil Procedure section 683.170 provides a method for a judgment debtor to challenge the interest on the renewed judgment in that action. It must be brought within 60 days, but is not the exclusive remedy. Section 683.170 appears to require such a challenge to be brought in the case where the judgment exists. Further, the 60 day deadline has long passed. Plaintiffs argue that they should be allowed to challenge the amount of interest in this case based on equitable procedures, but they provide no case or statute that would allow this challenge here. Thus, Plaintiffs have not shown that they have a right to challenge the interest in renewed judgment in this case.

The Court finds that Plaintiffs have not shown a probability of prevailing on any of their claims and therefore the Court cannot issue a preliminary injunction. (*Butt v. State of California* (1992) 4 Cal.4th at 678 [A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.].)

The parties' requests for judicial notice are granted as appropriate and unopposed.

11. 9:00 AM CASE NUMBER: L24-03854
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELI UPDEGRAFF
***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**
FILED BY: JPMORGAN CHASE BANK, N.A.
****TENTATIVE RULING:****
Summary

Plaintiff JP Morgan Chase's Motion to Set Aside Dismissal and to Enter Judgment under Stipulation pursuant to Cal. Code of Civ. Proc § 664.6 is **granted**. The Court will execute the Proposed Order lodged November 14, 2025. No appearance is required at the hearing on February 11, 2026.

Background

On September 19, 2025, Plaintiff JP Morgan Chase ("Plaintiff") filed a Motion to Set Aside Dismissal and to Enter Judgment Under Stipulation against Defendant Keli Updegraff ("Defendant"). The Motion was supported by a Memorandum of Points and Authorities, Declaration of Counsel Brian Langedyk, Notice, Amended Notice, and a Proposed Order. Proof of service evidences service to Defendant on September 19 and November 25, 2025.